

2:00 PM LINE 6

24-CIV-01210

CHRIS TAGUNICAR VS. SAM BHAS, ET AL

CHRIS TAGUNICAR
SAM BHAS

PRO SE
NOELLE D GONZALEZ

Plaintiff's Motion to Withdraw and/or Amend Deemed Admissions as to Defendant Amisha Patel

TENTATIVE RULING:

Plaintiff Chris Tagunicar's Motion to Withdraw and/or Amend Deemed Admissions as to defendant Amisha Patel is **DENIED**.

On September 12, 2025, Patel served plaintiff with discovery, including Requests for Admissions (RFAs). (Crane Decl., ¶ 4.) Plaintiff's responses were due by no later than October 17, 2025. (*Ibid.*) Plaintiff failed to serve any responses and did not request an extension of time to respond. (*Id.*, ¶ 5.) Patel's counsel sent emails to plaintiff on October 14, 2025 and October 22, 2025 requesting the status of the discovery responses, and plaintiff did not respond. (*Id.*, ¶ 6.) On October 24, 2025, Patel filed a Motion to Deem the RFAs Admitted. Plaintiff did not oppose the Motion and did not appear at the hearing on the Motion. (*Id.*, ¶ 9.) On February 18, 2026, the court granted the Motion and deemed the RFAs admitted against plaintiff. (*Ibid.*)

On April 2, 2026, plaintiff filed this Motion seeking relief from having the RFAs deemed admitted against him. Plaintiff seeks relief under Code of Civil Procedure, sections 473, subdivision (b) and 2033.300.

Under section 473, subdivision (b), "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Under section 2033.300, "[t]he court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits." (*Id.*, § 2033.300, subd. (b).) The relief allowed under section 2033.300(b) applies to admissions that were deemed admitted against a party. (See *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979-982 [finding relief under former section 2033, subdivision (m), now section 2033.300, also applied to admissions that were deemed admitted against a party].) The burden rests on the nonresponding party to establish mistake, inadvertence or excusable neglect and no substantial prejudice to the propounding party. (*Id.*, at p. 982.)

The difference between section 2033.300, subdivision (b) and section 473, subdivision (b) is that section 2033.300, subdivision (b) requires not only a showing of "mistake, inadvertence, or excusable neglect," but also a showing that "the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits." (*New*

Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1420.) In contrast, “the absence of substantial prejudice is an important factor to consider rather than a requirement” under Code of Civil Procedure, section 473, subdivision (b). (*Ibid.*) A trial court’s discretion in ruling on a motion to withdraw or amend an admission is not unlimited, but must be exercised in conformity with the spirit of the law and in a manner that serves the interests of justice. (*Ibid.*) “Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief.” (*Ibid.*) Thus, the court’s discretion to deny a motion is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party’s action or defense on the merits. (*Id.*, at pp. 1420-1421.)

Plaintiff claims that he experienced a medical emergency that prevented him from responding to the RFAs and opposing the Motion to Deem the RFAs Admitted, and that he served responses to the RFAs once he was able to act. However, plaintiff failed to provide any competent evidence in support of his Motion to show such a medical emergency existed at the time his responses and opposition were due.

After Patel pointed out this lack of evidence in opposition, plaintiff attempted to submit evidence with his reply. The general rule of motion practice is that the court will not consider new evidence raised for the first time in reply because of the unfairness to the opponent of not being able to address it. (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 227-228.) As such, the court has not considered plaintiff’s evidence presented for the first time in reply.

However, even if the court were to consider the evidence, it does not demonstrate that plaintiff had a medical emergency when the responses were due or at the time of the hearing on the motion to deem the RFAs admitted. Plaintiff provided a screenshot that appears to be titled “Emergency Department Jan. 19, 2026” and also appears to indicate that there were notes by doctors entered on January 19, 2026 and January 23, 2026. (Plaintiff’s exh. A.) Plaintiff does not provide copies of those notes, and only shows that they appear to have been entered on those dates. Plaintiff also provides a message from Dr. Amara on January 20, 2026 indicating that plaintiff complained of severe back pain and recommends taking medication and continuing gentle movement as tolerated and using ice or heat for comfort. (*Ibid.*) Nothing in these documents shows that plaintiff suffered a medical emergency when the discovery responses were due in October 2025, nor has he supplied evidence demonstrating that he was suffering from a medical emergency from January 19, 2026 through February 18, 2026, when the court deemed the RFAs Admitted.

The Motion is therefore **DENIED** because plaintiff fails to establish mistake, inadvertence, or excusable neglect to support the requested relief.

The court notes that Patel filed opposition papers on April 23, 2026 and then proceeded to file a second set of opposition papers on September 10, 2026. The second opposition does not state that it is an amended opposition. Nevertheless, the court finds that the second opposition

supersedes the original opposition filed on April 23, 2026 and has only considered the second set of opposition papers filed on September 10, 2026.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Patel's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court

2:00 PM LINE 7

25-CIV-06717

HUI JI VS. VOLVO CAR USA LLC

HUI JI
VOLVO CAR USA LLC

CHELSEA HOLLINS
FREEMAN D CULLOM

Plaintiff's Motion for Payment of Attorneys' Fees and Reimbursement of Costs and Expenses

TENTATIVE RULING:

For the reasons stated below, plaintiff Hui Ji's "Motion for Attorney's Fees, Costs, and Expenses," filed on September 3, 2025, is **GRANTED-in-part** and **DENIED-in-part**. The court awards to plaintiff, as the prevailing party, the following:

- \$11,745 total awarded attorney's fees; +
- \$668.30 total awarded costs/expenses
- (no multiplier)
- \$12,413.30 (total award)

Plaintiff's request for relief under Code of Civil Procedure, section 473, subdivision (b), filed on September 16, 2026, is **GRANTED**. Plaintiff states that attorney Nadia Alam's declaration was inadvertently not filed with plaintiff's moving papers. The court grants the request and has considered the Alam declaration. Where evidence is belatedly filed, the court sometimes continues the hearing or grants the opposing party an opportunity to respond. Here, however, the court finds that the Alam declaration does not change the court's decision regarding the motion, and therefore, finds it unnecessary to continue the hearing or otherwise delay a ruling on the motion.

A. Background

This case was filed under Song-Beverly Consumer Warranty Act, which permits a prevailing consumer to recover their reasonable attorney's fees, costs and expenses. (Civ. Code § 1794, subd. (d).) Plaintiff filed the case on September 3, 2025. Defendant Volvo Car USA, LLC filed its Answer in October 2025. On January 31, 2026, fewer than five months into the case, the parties signed a Settlement Agreement. Plaintiff, as the prevailing party, now seeks a total award of \$23,308.10 for attorney's fees and costs. Defendant does not dispute that plaintiff is the "prevailing party" for purposes of recovering fees but challenges the amount requested.

By any objective measure, very little happened in this litigation. In the few months that the case was pending, plaintiff served some standard initial discovery requests, but the case settled before defendant responded. No depositions took place. No motion practice occurred.
